

2:00 PM LINE 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

CITY OF FOSTER CITY
ELIZABETH KARNAZES

BENJAMIN L. STOCK
PRO PER

MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT, MEMORANDUM OF POINTS AND AUTHORITIES, AND
DECLARATION OF ELIZABETH KARNAZES IN SUPPORT THEREOF

TENTATIVE RULING:

For the following reasons, the Motion to Quash is **DENIED**.

The Court has independently reviewed and considered all papers filed in support of and in opposition to the Motion to Quash, the evidentiary record, and the applicable legal authorities. The Court has also reviewed Judge Fineman's ruling addressing the Motion to Quash. Following its own independent review and analysis, the Court agrees with Judge Fineman's reasoning and conclusions and adopts that reasoning as its own. The Court has considered the arguments raised by the parties, including those not expressly discussed herein, and finds that none warrants a different result. Accordingly, for the reasons articulated in Judge Fineman's ruling and independently determined by this Court, the Motion to Quash is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 3

25-CIV-06841

ESTATE OF HUNTER BERGNER, ET AL VS. SAN MATEO COUNTY, ET AL

ESTATE OF HUNTER BERGNER
SAN MATEO COUNTY

DENISSE O. GASTELUM
ADAM M. STODDARD

DEMURRER TO PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendants County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher's Demurrer to Plaintiffs' Complaint is **SUSTAINED WITH LEAVE TO AMEND**.

The requests for judicial notice are GRANTED to the extent they seek judicial notice of the existence and contents of court records and official records, but not the truth of disputed factual matters contained therein.

As a preliminary matter, Plaintiffs' opposition contains 17 pages of argument and therefore exceeds the 15-page limit imposed by California Rules of Court, rule 3.1113(d). An oversized memorandum is treated in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).) In the exercise of its discretion, the Court has not considered argument appearing beyond the applicable page limit. The parties are directed to comply with the applicable page limitations in future filings.

In this action, Plaintiffs Estate of Hunter Bergner (the "Estate"), Patricia Colet, L.B.1, L.B.2, and S.B. (collectively, "Plaintiffs") seek damages arising from the March 15, 2024, death of Hunter Bergner ("Decedent") by suicide while incarcerated at Maguire Correctional Facility. The Complaint alleges that Defendant County of San Mateo (the "County") and its employees are liable for their respective roles in failing to prevent Decedent from taking his own life.

The County and Defendants Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher (collectively, "Defendants") demur generally and specially for uncertainty to the Complaint and its four causes of action asserted against them.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the factual allegations of the operative pleading. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) In determining whether a complaint states a cause of action, the Court accepts properly pleaded material facts as true, together with facts that reasonably may be inferred from those allegations, but does not accept contentions, deductions, or conclusions of fact or law. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The pleading is read as a whole and liberally construed. (Code Civ. Proc., § 452; *Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.)
